



Western Australia

Environmental Protection Act 1986

**Environmental Protection (Goldfields
Residential Areas) (Sulfur Dioxide) Regulations
2003**

Environmental Protection (Goldfields Residential Areas) (Sulfur Dioxide) Regulations 2003

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Defined terms

**Environmental Protection (Goldfields
Residential Areas) (Sulfur Dioxide)
Regulations 2003**

1. Citation

These regulations may be cited as the *Environmental Protection (Goldfields Residential Areas) (Sulfur Dioxide) Regulations 2003*.

2. Commencement

These regulations come into operation on the day on which the policy comes into operation.

3. Terms used

(1) In these regulations —

policy means the *Environmental Protection (Goldfields Residential Areas) (Sulfur Dioxide) Policy 2003* —

(a) approved under the *Environmental Protection (Goldfields Residential Areas) (Sulfur Dioxide) Policy Order 2003* (published in *Gazette* 18 March 2003, p. 799-807); and

(b) confirmed under the *Environmental Protection (Goldfields Residential Areas) (Sulfur Dioxide) Policy Order (No. 2) 2003* (published in *Gazette* 10 June 2003, p. 2085-92); and

r. 4

(c) set out in the Appendix to the order referred to in paragraph (b).

(2) Unless the contrary intention appears, words and expressions defined in clause 2 of the policy and used in these regulations have the same respective meanings as they have in the policy.

[Regulation 3 amended: Gazette 22 Aug 2014 p. 3033.]

4. Prescribed licence conditions for premises discharging sulfur dioxide

(1) For the purposes of section 62(2) of the Act, the condition set out in subregulation (2) is prescribed as a condition that may be attached to a works approval or licence.

(2) The occupier must ensure that the operations on the premises are conducted in such a way as neither to cause, nor to contribute to causing, the maximum sulfur dioxide concentration permitted in the ambient air of a protected area under clause 6 of the policy to be exceeded at any place within the area.

[Regulation 4 amended: Gazette 22 Aug 2014 p. 3034.]

5. Repeal

The *Environmental Protection (Goldfields Residential Areas) (Sulphur Dioxide) Regulations 1992* are repealed.

Notes

¹ This is a compilation of the *Environmental Protection (Goldfields Residential Areas) (Sulfur Dioxide) Regulations 2003* and includes the amendments made by the other written laws referred to in the following table.

Compilation table

<u>Citation</u>	<u>Gazettal</u>	<u>Commencement</u>
<u><i>Environmental Protection (Goldfields Residential Areas) (Sulfur Dioxide) Regulations 2003</i></u>	<u>18 Mar 2003 p. 806-7</u>	<u>18 Mar 2003 (see r. 2 and Gazette 18 Mar 2003 p. 799)</u>
<u><i>Environmental Protection (Goldfields Residential Areas) (Sulfur Dioxide) Amendment Regulations 2014</i></u>	<u>22 Aug 2014 p. 3033-4</u>	<u>r. 1 and 2: 22 Aug 2014 (see r. 2(a)); Regulations other than r. 1 and 2: 23 Aug 2014 (see r. 2(b))</u>

Defined terms

Defined terms

[This is a list of terms defined and the provisions where they are defined.

The list is not part of the law.]

Defined term	Provision(s)
policy	3(1)

~~SUPREME COURT OF SEYCHELLES~~

Report
able
[2025]
CA20/2022
—— (Appeal
from CS112/2019)

In the matter between:

~~MAURITIUS UNION ASSURANCE LIMITED~~ —

Applicant

(rep. by Mr. B. Georges)

versus

~~MAZU (PTY) LTD~~ —

Respondent

(rep. Mr. B. Hoareau)

Neutral Citation: ~~MUA Limited vs Mazu (PTY) LTD (CA20/2022
Appeal from CS112/2019) [2025] (12th February
2025)~~

Before: — A. Madeleine, J

Summary: — ~~Appeals from Magistrates Court to Supreme Court—
Courts Act (Appeal) Rules~~

Heard: — Written Submissions

Delivered: — 12th February 2025

ORDER

~~The appeal is deemed withdrawn.~~

JUDGMENT

MADELEINE, J

[1] — ~~This is an appeal from the decision of the Magistrates Court per Burian, Mgr (as she then was) dated 22nd November 2021 in CS 112/2019 Mazu Construction (Pty) Ltd v. Mauritius Union Assurance Limited awarding Mazu Construction (Pty) Ltd, the Respondent herein, damages in the sum of SR223,857/— together with interest and costs.~~

[2] — ~~The Appeal has been filed out of time with leave of the Supreme Court granted on 6th July 2022.~~

[3] — ~~The Notice of Appeal was filed on 22nd September 2022 and the memorandum of appeal, which the Appellant termed the ‘Grounds of Appeal’, were filed on 26th October 2022.~~

[4] — ~~The Memorandum of Appeal states as follows—~~

~~“*GROUND OF APPEAL*”~~

~~1. Learned Magistrate Burian erred in fact by finding that a plain reading of the contract did not indicate the clear intention of the parties.~~

Defined terms

~~2. Learned Magistrate Burian erred in fact by interpreting “Principal” to mean the Respondent, when a clear reading of the entire Certificate of Insurance and Insurance Covers indicate that “Principal” is a separate entity from “the Insured” or the “Contractor”~~

~~3. Learned Magistrate Burian erred in fact by finding that the Respondent’s claim was an insured peril covered by the policy of insurance.~~

~~Dated this 25th day of 10 2022”~~

~~[5]—The parties filed written submissions on the Appeal and the matter was reserved for Judgment on 11th and 30th May 2023 before Adeline, J.~~

~~[6]—On allocation of the Appeal to this Court, the Appellant filed notice of motion and Affidavit in MA243/2023 *Mauritius Union Assurance Limited v. Mazu Construction (Pty) Ltd* (“MA243/2023”) to amend the memorandum of appeal to insert the following prayer that had been omitted by oversight—~~

~~“WHEREFORE, it is humbly prayed that this Honourable Court be pleased to allow the Appeal and quash the decision of the Learned Magistrate Burian in CS112 of 2019”~~

~~[7]—In dismissing the application for Amendment in MA243/2023, this Court held that—~~

Defined terms

~~22 “In absence of a valid memorandum of appeal that is also
deemed withdrawn by operation of rule 14 (as read with rule
5) of the Courts Act (Appeal Rules), the issue amendment does
not arise”.~~

~~23 “Based on my finding above, the merits of the application also do
not arise for determination”.~~

[8] — ~~Having determined in MA243/2023 that the memorandum of
appeal is fundamentally defective and deemed withdrawn by
operation of rule 14 (as read with rule 5) of the Courts Act
(Appeal Rules), this Court has no jurisdiction to hear this
appeal.~~

[9] — ~~The Appeal stands withdrawn.~~

~~Signed, dated and delivered at Ile du Port on 12th February 2025~~

Madeleine, J